

**IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD**

**TUESDAY, THE THIRTEENTH DAY OF AUGUST
TWO THOUSAND AND TWENTY FOUR**

PRESENT

THE HONOURABLE SMT JUSTICE P.SREE SUDHA

CIVIL REVISION PETITION NO: 1 OF 2024

Petition under Article 227 of the Constitution of India aggrieved by the order dated. 11-10-2023 passed in IA No.160 of 2021 in OS No. 74 of 2009 on the file of the Junior Civil Judge, Wanaparthy.

Between:

1. Dadi Venkatrama Reddy, S/o D. Gal Reddy, Aged 60 years Occ. Agriculture R/o Thatipamula village, Peddabir Mandal, Wanaparthy District.
2. Dadi Vasudev Reddy, S/o D. Gal Reddy, Aged 52 years, Occ: Agriculture, R/o Thatipamula village, Peddabir Mandal, Wanaparthy District.

...PETITIONER/DEFENDANT

AND

D. Kista Reddy, S/o D. Ramachandra Reddy, Aged 40 years, Occ: Agriculture, R/o H.no. 2-21 R/o Thatipamula village Peddabir Mandal, Wanaparthy District.

...RESPONDENTS/PLAINTIFF

IA NO: 1 OF 2024

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to stay all further proceedings in the suit OS No. 74 of 2009 on the file of the Honble Junior Civil Judge, Wanaparthy in the interest of justice.

Counsel for the Petitioners: SRI RAJAGOPALLAVAN TAYI

Counsel for the Respondent: SRI NALLAMASU KRISHNA

The Court made the following: ORDER

THE HONOURABLE SMT. JUSTICE P.SREE SUDHA

CIVIL REVISION PETITION No. 1 of 2024

ORDER:

This Civil Revision Petition is filed aggrieved by the order, dated 11.10.2023, passed in I.A.No.160 of 2021 in O.S.No.74 of 2009 by the learned II Additional Junior Civil Judge, at Wanaparthy.

2. O.S.No.74 of 2009 is filed for perpetual injunction by respondent/plaintiff against petitioners/defendants. During the pendency of the suit, I.A.No.160 of 2021 was filed by the petitioners/defendants under Order 18, Rule 17 of CPC to recall P.W.3 for the purpose of cross-examination. The trial Court dismissed the application. Aggrieved by the order of the trial Court, the petitioners/defendants filed the present Civil Revision Petition.

3. Heard both sides. Perused the record.

4. Learned counsel for petitioners contended that the petitioners intended to confront the document to P.W.3 in the custody of District Registrar for collection of the deficit stamp duty. In spite of the letter addressed by the Court, the District Registrar did not collect the deficit stamp duty and return back

the document to the court for adjudication of the suit. The document is very much necessary for proper appreciation to prove the title of the petitioners over the suit schedule property which also substantially proves the respondent is not in possession of the suit schedule property as on the date of filing of the suit. Therefore, requested to set aside the order of the trial Court.

5. In a counter filed by respondent/plaintiff he contended that the suit is filed for injunction and the trial Court granted ad-interim injunction order on 04.05.2009 in favour of respondent/plaintiff restraining the petitioners/defendants from interfering into the peaceful possession and enjoyment of the suit schedule property. After oral assurance of both parties, the trial Court ordered status-quo on 26.06.2009 over the suit schedule property till the disposal of the suit and the trial Court further directed both the Counsel to cooperate for speedy disposal of the suit by the end of July, 2009. The chief affidavits of P.Ws.2 to 5 were filed on 16.07.2009 and the case was posted for cross-examination of P.Ws.1 to 5 by the petitioners/defendants and the petitioners/defendants took several adjournments and their right for cross-examination was forfeited. Petitioners/defendants filed L.A.Nos.148 and 149 of 2016 to set aside the orders pertaining to forfeited the right of cross examination of P.Ws.1 and 3 dated

01.04.2016. Petitioners/defendants dragged the case for more than 12 years. There is no sufficient cause to recall P.W.3. The unregistered document dated 18.01.2001 is not at all relevant and as such requested the Court dismiss the application.

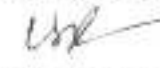
6. The trial Court observed that even after granting several opportunities, the matter was dragged on for 12 long years. The suit schedule property was occupied from 2009 onwards. The said document is partition deed on "Sada paper" and it was sent for collection of stamp duty and from then there are several instances of reminders addressed to District Registrar for sending the document on 24.05.2019 vide Dis.No.675 of 2019 and the District Registrar sent letter No.927/2019 dated 25.06.2019 requesting for details of the properties to ascertain the deficit stamp duty and the counsel for petitioners/defendants before the trial Court has not furnished any information. P.W.3 was already recalled and he failed to furnish necessary information to the District Registrar till date and came up with an application to drag on the proceedings. Though, it is a suit for injunction, it is for the Court to decide the possession of the plaintiff but not the title. This Court finds that the trial Court rightly dismissed the application and it needs no interference.

7. In the result, this Civil Revision Petition is dismissed by confirming the order of the trial Court dated 11.10.2023, passed in I.A.No.160 of 2021 in O.S.No.74 of 2009. There shall be no order as to costs.

Miscellaneous petitions pending, if any, shall stand closed.

//TRUE COPY//

SD/-K.AMMAJI
ASSISTANT REGISTRAR


SECTION OFFICER

To,

1. The II Additional Junior Civil Judge at Wanaparthy
 2. One CC to Sri Rajagopallavan Tayi, Advocate [OPUC]
 3. One CC to Sri Nallamasu Krishna, Advocate [OPUC]
 4. Two CD Copies
- PCSD/plp

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HIGH COURT

DATED:13/08/2024

ORDER

CRP.No.1 of 2024



DISMISSING THE C.R.P.

⑥ Copies

Pro
21/10/24